

ALITO, J., dissenting

one may think about the weight of those interests, no one can argue that they are comparable to those in this case.

In *Montejo v. Louisiana*, 556 U. S. 778, 793–797 (2009), the Court abrogated a prophylactic rule that had been adopted in *Michigan v. Jackson*, 475 U. S. 625 (1986), to protect a defendant’s right to counsel during post-arraignment interrogation. The dissent did not claim that any defendants had relied on this rule, arguing instead that the public at large had an interest “in knowing that counsel, once secured, may be reasonably relied upon as a medium between the accused and the power of the State.” *Montejo, supra*, at 809 (opinion of Stevens, J.). This abstract interest, if it can be called reliance in any proper sense of the term, is a far cry from what is at stake here.

In *Citizens United v. Federal Election Comm’n*, 558 U. S. 310 (2010), where we overruled precedent allowing laws that prohibited corporations’ election-related speech, we found that “[n]o serious reliance interests” were implicated, *id.*, at 365, since the only reliance asserted by the dissent was the time and effort put in by federal and state lawmakers in adopting the provisions at issue, *id.*, at 411–412 (Stevens, J., concurring in part and dissenting in part). In this case, by contrast, what is at stake is not the time and effort of Louisiana and Oregon lawmakers but a monumental litigation burden and the potential inability to retry cases that might well have ended with a unanimous verdict if that had been required.

Finally, in *Janus v. State, County, and Municipal Employees*, 585 U. S. 878 (2018), where we overruled *Abood v. Detroit Bd. of Ed.*, 431 U. S. 209 (1977), we carefully considered and addressed the question of reliance, and whatever one may think about the extent of the legitimate reliance in that case, it is not in the same league as that present here. *Abood* had held that a public sector employer may require non-union members to pay a portion of the dues collected from union members. 431 U. S., at 235–236. In overruling